

Preetmesh Pal v. State of U.P.

Allahabad High Court · Division Bench · 17 January 2019 · Writ-C No. 1109 of 2019 · **Writ disposed; relegated to EE under cl. 6.5; recovery stayed.**

HEADNOTE

A consumer challenging recovery of electricity dues and seeking final assessment must first go to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not quash the recovery on merits. It may direct the consumer to appear with a representation, require the Executive Engineer to hear and decide it in accordance with law, and keep recovery in abeyance pending that decision.

FACTUAL SUMMARY

Preetmesh Pal challenged a recovery citation dated 13.11.2018 and an order dated 28.12.2018 seeking recovery of Rs.13,13,546 plus Rs.65,677 as electricity dues from Purvanchal Vidyut Vitran Nigam Ltd. He pleaded readiness to pay in easy installments and sought a direction for final assessment. After hearing standing counsel and counsel for the Executive Engineer, Electricity Urban Distribution Division, Bamhrauli, Allahabad, the Division Bench disposed of the writ without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Where electricity dues are under recovery and the consumer seeks final assessment, the remedy is a representation to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court will not decide the bill on merits; it may dispose of the petition by directing the consumer to appear with a representation, requiring the Executive Engineer to hear and decide it in accordance with law within a fixed time, and keeping the recovery in abeyance pending that decision subject to the consumer's appearance.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY DUES, THE PRAYER FOR EASY INSTALLMENTS, AND THE PRAYER FOR FINAL ASSESSMENT

Left to the Executive Engineer under clause 6.5; the High Court did not examine the recovery on merits.